

**Birla Institute of Technology and Science**

**Pilani**

**29th - 30th, March, 2025**



**BITSMUN 2025**

**ALL INDIA POLITICAL PARTY MEET  
(AIPPM)**

**BACKGROUND GUIDE**



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# LETTER FROM THE EXECUTIVE BOARD

Greetings Delegates,

It is our great pleasure to welcome you to this session of the **All India Political Party Meet (AIPPM)** at **BITS Pilani MUN 2025**. This committee serves as a crucial platform for discussing and debating issues of national importance, bringing together representatives from diverse political backgrounds to formulate policy recommendations.

Our agenda for this session, **"Deliberation upon Freedom of Speech in India with Special Emphasis on Financial Redistribution & Delimitation in India,"** is a matter of growing significance in contemporary discourse. The balance between **free speech and state control**, the role of **financial structures in shaping public discourse**, and the impact of **delimitation on electoral democracy** are all crucial aspects of the discussion.

This background guide aims to provide a **comprehensive understanding** of the agenda, exploring its **historical origins, legal interpretations, political implications, and socio-economic consequences**. However, this document is only a foundation. Delegates are encouraged to conduct extensive research beyond this guide to develop well-informed and substantive arguments.

We look forward to a **stimulating and constructive debate** that fosters meaningful deliberations on this pressing issue.

For any other queries feel free to reach out.

Best regards,

Chair: Ayush Vishwakarma

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# VALID SOURCES

To ensure well-researched and fact-based discussions, delegates must refer to credible sources. Below is a list of valid sources for reference:

## Constitutional & Legal Sources:

- **The Constitution of India** (especially Articles 19, 280, and 82)
- **Indian Penal Code (IPC), 1860** (Relevant sections on sedition, hate speech, and defamation)
- **Information Technology Act, 2000** (with amendments)
- **Representation of the People Act, 1951** (regarding electoral processes and delimitation)

## Judicial Rulings & Case Law:

- **Kedar Nath Singh v. State of Bihar (1962)** (Defining the scope of sedition laws)
- **Bennett Coleman & Co. v. Union of India (1973)** (Freedom of the press and economic barriers)
- **Shreya Singhal v. Union of India (2015)** (Striking down Section 66A of the IT Act)
- **Anuradha Bhasin v. Union of India (2020)** (Right to Internet access as a subset of free speech)
- **Indira Jaising v. Supreme Court of India (2017)** (Financial restrictions and their impact on legal discourse)

## Reports & Committees:

- **Law Commission of India Reports (Various Years)**
- **Justice Srikrishna Committee Report on Data Protection (2018)**
- **Second Administrative Reforms Commission Report (2005)** (Government transparency and media freedom)
- **Finance Commission Reports (Various Years)**
- **Delimitation Commission Reports (1952, 1963, 1973, 2002)**

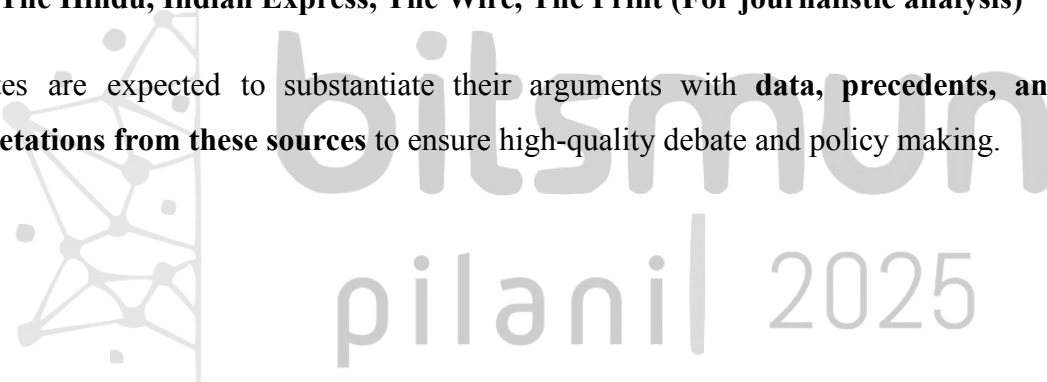
### **International Sources for Comparative Analysis:**

- **Universal Declaration of Human Rights (UDHR), 1948** (Article 19 - Freedom of Expression)
- **United Nations Human Rights Committee (General Comment No. 34 on ICCPR)**
- **US First Amendment Laws** (Comparative insights into free speech protections)
- **UK Defamation Act, 2013** (Comparison with Indian defamation laws)

### **Academic Papers & Reputed Publications:**

- **Publications from PRS Legislative Research**
- **Journals from National Law Universities (NLUs)**
- **Reports from Transparency International & Amnesty International**
- **The Hindu, Indian Express, The Wire, The Print (For journalistic analysis)**

Delegates are expected to substantiate their arguments with **data, precedents, and legal interpretations from these sources** to ensure high-quality debate and policy making.



# INTRODUCTION

Freedom of speech and expression is a **cornerstone of democracy**, enshrined under **Article 19(1)(a) of the Indian Constitution**. However, it is subject to **reasonable restrictions** under **Article 19(2)**, which allows the state to regulate speech on grounds such as **sovereignty and integrity of India, national security, public order, decency, morality, contempt of court, defamation, and incitement to an offence**. The interpretation and application of these restrictions have evolved through various judicial pronouncements and legislative amendments.

## Legal Framework Governing Free Speech in India

### 1. Constitutional Provisions

- **Article 19(1)(a):** Guarantees the right to freedom of speech and expression.
- **Article 19(2):** Allows the state to impose reasonable restrictions on free speech under specific conditions.
- **Article 21:** Protection of life and personal liberty, often invoked in cases where suppression of speech leads to unlawful detention.

### 2. Important Supreme Court Judgments on Free Speech

- **Romesh Thappar v. State of Madras (1950):** This landmark case was one of the first instances where the Supreme Court struck down a law restricting free speech, emphasizing that the right to freedom of expression is an essential component of democracy.
- **Kedar Nath Singh v. State of Bihar (1962):** The court upheld the constitutional validity of the sedition law but limited its application only to speech that incites violence or public disorder.
- **Bennett Coleman & Co. v. Union of India (1973):** The Supreme Court ruled against governmental restrictions on newspaper circulation, reinforcing the idea that economic control should not be used to stifle free speech.

- **Shreya Singhal v. Union of India (2015):** The Supreme Court struck down Section 66A of the IT Act, 2000, stating that it was vague and arbitrary, violating the fundamental right to free speech.
- **Anuradha Bhasin v. Union of India (2020):** The Supreme Court recognized access to the internet as a fundamental right linked to free speech and held that internet shutdowns must be justified by necessity and proportionality.

### 3. Reports & Committees on Free Speech Regulation

- **Law Commission of India's 267th Report (2017):** Recommended reforms in sedition laws to prevent misuse.
- **Justice Srikrishna Committee Report (2018):** Highlighted concerns regarding digital free speech and privacy in India's data protection regime.
- **Second Administrative Reforms Commission Report (2005):** Advocated for a more transparent regulatory framework to ensure the media's independence.
- **Finance Commission Reports:** Address financial allocations that impact media operations and public discourse.

### Relevance of Financial Redistribution & Delimitation to Free Speech

The interplay between financial redistribution, delimitation, and freedom of speech is significant. Unequal access to financial resources often translates into **disparities in media influence and electoral power**. Corporate media ownership, government-controlled advertising budgets, and financial regulations can shape public discourse in ways that limit genuine democratic debates.

Similarly, **delimitation** affects political representation, influencing which voices are heard and which regions get adequate policy focus. The **Delimitation Commission Reports (1952, 1963, 1973, and 2002)** have played a crucial role in shaping the electoral landscape, but the freeze on delimitation until 2026 has raised concerns about equitable representation in decision-making bodies.

# HISTORICAL CONTEXT

The evolution of **freedom of speech, financial redistribution, and delimitation in India** has been shaped by historical events, colonial policies, post-independence legal frameworks, and evolving judicial interpretations. Understanding the historical trajectory provides insight into **how restrictions on speech, financial policies, and electoral delimitation have influenced India's democratic development.**

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## 1. Colonial-Era Restrictions on Free Speech and Financial Control

During British rule, laws were **primarily designed to suppress dissent and control financial power** to prevent nationalistic uprisings.

### 1.1 Colonial Laws and Restrictions

- **Sedition Law (Section 124A, IPC 1870):** Introduced by the British to curb anti-colonial sentiment, this law was used against leaders such as **Bal Gangadhar Tilak (1897)** and **Mahatma Gandhi (1922)** for their speeches and writings.
- **Press Acts (1878, 1910):** Gave the British government the authority to **pre-censor newspapers** and shut down publications critical of colonial rule.
- **Rowlatt Act (1919):** Allowed the colonial government to **arrest individuals without trial for speech-related offences**, leading to widespread protests, including the **Jallianwala Bagh massacre**.

### 1.2 British-Era Financial Control & Political Delimitation

- **Government of India Act, 1935:** Established financial control mechanisms that centralized power in the colonial administration while limiting provincial autonomy.
- **First Delimitation Exercises (1919, 1935):** Electoral boundaries were drawn to **favour British-aligned princely states and divide Indian nationalist movements.**



These **colonial-era policies laid the foundation for post-independence debates on free speech, financial redistribution, and delimitation**, as independent India sought to balance national security concerns with democratic freedoms.

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## 2. Post-Independence Developments (1947-1975)

### 2.1 Constitutional Debates on Free Speech (1947-1950)

The **Constituent Assembly Debates** reflected a strong commitment to freedom of speech. However, early challenges emerged regarding its limits:

- **First Amendment (1951):** Introduced by **Jawaharlal Nehru's government** to impose **reasonable restrictions on free speech** (Article 19(2)), citing concerns over public order and defamation.
- **Romesh Thappar v. State of Madras (1950):** The **Supreme Court struck down a censorship law**, affirming that restrictions on free speech must be constitutionally justified.

### 2.2 Early Financial Policies and Redistribution

- **Finance Commission (1951):** Established under **Article 280** to ensure **equitable financial distribution** among states.
- **Nationalization of Banks (1969):** Led by **Indira Gandhi**, aimed at redistributing financial power but also raised concerns over **state control of financial discourse**.

### 2.3 Early Delimitation Efforts

- **Delimitation Commission Act (1952):** Set up India's first **independent commission** to redraw electoral boundaries.
- **First Three Delimitation Exercises (1952, 1963, 1973):** Adjusted parliamentary and state constituencies based on **population changes**.

This period set the stage for subsequent conflicts between **governmental control and constitutional freedoms**.

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### **3. The Emergency (1975-1977): Suppression of Speech and Political Manipulation**

The **Emergency (1975-1977)** declared by **Indira Gandhi** marked one of the darkest periods for free speech in India.

#### **3.1 Key Developments**

- **Censorship of Media:** Over **250 newspapers and journals** were censored, and critical publications were shut down.
- **Arrests Under MISA (1971):** Over **100,000 activists and journalists** were jailed without trial under the **Maintenance of Internal Security Act (MISA)**.
- **Financial Control Over Opposition:** The government withheld advertisements from opposition-aligned newspapers, limiting their reach.
- **Suspension of Delimitation (1976):** The government **froze delimitation** until 2001 to prevent demographic changes from altering electoral advantages.

#### **3.2 Supreme Court's Stance During the Emergency**

- **ADM Jabalpur v. Shivkant Shukla (1976):** The Supreme Court ruled that **fundamental rights, including free speech, could be suspended during emergencies**, a decision later criticized for weakening democratic values.

The Emergency demonstrated how **government control over speech, finances, and delimitation** could be used to suppress dissent and manipulate political outcomes.

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## 4. Post-Emergency Reforms and Expansion of Free Speech (1980-2000)

### 4.1 Legal & Judicial Strengthening of Free Speech

- **Minerva Mills v. Union of India (1980):** Limited the government's power to **amend fundamental rights**, protecting freedom of expression.
- **Bennett Coleman & Co. v. Union of India (1973):** Prohibited the government from **imposing economic restrictions on media ownership** to limit speech.
- **PUCL v. Union of India (1997):** Strengthened **transparency laws** related to election funding, ensuring **greater financial fairness in political campaigns**.

### 4.2 Economic Liberalization and Financial Redistribution (1991)

- **Liberalization Policies (1991):** Reduced **government control over financial institutions and media ownership**, allowing **private sector media expansion**.
- **Finance Commission Reforms (1993-1997):** Strengthened state revenue-sharing mechanisms, impacting how **financial resources are distributed across states**.

### 4.3 Resumption of Delimitation (2002)

- After a **long freeze (1976-2001)**, the **Delimitation Commission Act (2002)** was implemented to **redraw parliamentary and assembly constituencies**.
  - However, concerns were raised that delimitation still did not account for **significant demographic shifts**, leading to **political power imbalances** in certain regions.
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## 5. Contemporary Issues (2000-Present)

### 5.1 Digital Free Speech and Social Media Regulations

With the rise of digital platforms, online speech regulation has become a key issue.

- **Shreya Singhal v. Union of India (2015):** The Supreme Court struck down Section 66A of the IT Act, which was being misused to arrest people for online speech.
- **Anuradha Bhasin v. Union of India (2020):** Declared internet access as a fundamental right and ruled that blanket internet shutdowns violate free speech.

### 5.2 Political Funding and Media Influence

- **Electoral Bonds Scheme (2017):** Allowed anonymous political donations, raising concerns about corporate influence over free speech and electoral outcomes.
- **Government Advertising Control (2019):** Reports show that government-funded advertisements disproportionately favour pro-government media outlets, restricting critical journalism.

### 5.3 Delimitation Challenges and Future Implications

- **Delimitation Freeze Until 2026:** Originally imposed in 1976, then extended in 2001, it prevents the reallocation of parliamentary seats based on current population data.
- **Underrepresentation of High-Growth States:** States with high population growth (UP, Bihar, MP) argue that they are underrepresented in Parliament due to outdated delimitation data.
- **Potential Political Repercussions (Post-2026):** Any future delimitation changes could reshape electoral politics by altering seat distribution across states.

# LEGAL FRAMEWORK & JUDICIAL OVERSIGHT

The legal framework governing freedom of speech, financial redistribution, and delimitation in India is rooted in constitutional provisions, statutory laws, judicial interpretations, and regulatory frameworks. Over time, the judiciary has played a pivotal role in defining the scope of free speech, ensuring equitable financial redistribution, and maintaining the integrity of electoral delimitation. This section explores key constitutional articles, legislative provisions, and landmark Supreme Court judgments that shape the discourse.

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## 1. CONSTITUTIONAL PROVISIONS

The Constitution of India guarantees freedom of speech and expression, financial equity, and democratic representation through several key articles:

### 1.1 Freedom of Speech & Expression

- **Article 19(1)(a):** Guarantees the right to freedom of speech and expression to all citizens.
- **Article 19(2):** Allows the state to impose reasonable restrictions on speech for reasons including:
  - Sovereignty and integrity of India
  - Security of the state
  - Public order
  - Decency and morality
  - Contempt of court
  - Defamation
  - Incitement to an offence

## 1.2 Financial Redistribution & Federalism

- **Article 280:** Establishes the **Finance Commission** to determine tax devolution and financial distribution among states.
- **Article 282:** Provides for **discretionary grants** by the Union government to states.
- **Article 293:** Governs **borrowing powers** of states, ensuring financial autonomy.

## 1.3 Delimitation & Electoral Representation

- **Article 82:** Mandates the **periodic readjustment of parliamentary and assembly constituencies** based on census data.
- **Article 170:** Fixes the composition of **Legislative Assemblies in states**, ensuring fair representation.
- **Article 325 & 326:** Guarantee **universal adult suffrage and equality in electoral representation**.



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## 2. STATUTORY FRAMEWORK

Apart from the Constitution, several statutory laws regulate **free speech, financial distribution, and delimitation.**

### 2.1 Free Speech & Media Regulation

- **Indian Penal Code (IPC), 1860:**
  - **Section 124A:** Defines **sedition** (currently under review for repeal).
  - **Sections 153A & 295A:** Penalize **hate speech and religious incitement.**
  - **Section 499 & 500:** Define **criminal defamation laws.**
- **Information Technology (IT) Act, 2000:**
  - **Section 66A:** Criminalized "offensive" online speech (**struck down in Shreya Singhal v. Union of India, 2015**).
  - **Section 69A:** Allows the government to **block websites on national security grounds.**
- **Cable Television Networks (Regulation) Act, 1995:**
  - Regulates **broadcast media content**, allowing censorship under **governmental oversight.**

### 2.2 Financial Redistribution Laws

- **Finance Commission Act, 1951:**
  - Lays out **mechanisms for tax sharing and grants-in-aid** among states.
- **Goods and Services Tax (GST) Act, 2017:**
  - Established a **centralized tax system**, significantly altering state revenues.
- **Fiscal Responsibility and Budget Management (FRBM) Act, 2003:**
  - Mandates fiscal discipline, affecting **state borrowing and expenditures.**

### 2.3 Delimitation & Electoral Laws

- **Delimitation Commission Act, 1952, 1963, 1973, 2002:**

- Governs **periodic redrawing of electoral boundaries** to maintain proportional representation.
  - **Representation of the People Act, 1951:**
    - Lays down provisions for the **conduct of elections, candidate eligibility, and electoral disputes.**
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### 3. LANDMARK JUDICIAL RULINGS

The **Supreme Court and High Courts** have consistently ruled on the interpretation and limitations of free speech, financial governance, and electoral laws.

#### 3.1 Supreme Court Judgments on Free Speech

**Romesh Thappar v. State of Madras (1950):**

- **First major ruling on free speech** in India, striking down a state-imposed ban on a publication.
- The Court ruled that **public order restrictions must be narrowly defined**.

**Bennett Coleman & Co. v. Union of India (1973):**

- Government-imposed **newsprint restrictions were struck down**, as they infringed upon press freedom.
- The Court ruled that **economic policies cannot be used to curtail media freedom**.

**Shreya Singhal v. Union of India (2015):**

- **Section 66A of the IT Act was struck down**, preventing arbitrary arrests for online speech.
- **Upheld the importance of free expression in the digital space**.

**Anuradha Bhasin v. Union of India (2020):**

- **Declared internet access as a fundamental right** under free speech.
- Held that **indiscriminate internet shutdowns violate Article 19**.

#### 3.2 Supreme Court Judgments on Financial Redistribution

**S.R. Bommai v. Union of India (1994):**

- Upheld **federalism** and prevented the Union government from financially undermining state governments.

**State of West Bengal v. Union of India (1963):**

- The Supreme Court ruled that **the Union government cannot arbitrarily interfere in state financial autonomy.**

**P.A. Inamdar v. State of Maharashtra (2005):**

- Ruled that **financial aid cannot be selectively distributed based on religious or political affiliations.**

### **3.3 Supreme Court Judgments on Delimitation & Electoral Fairness**

**Kuldip Nayar v. Union of India (2006):**

- Upheld **open ballot voting in Rajya Sabha elections**, preventing **money-driven political manipulation.**

**Gujarat Assembly Election Case (2002):**

- Ruled that **delimitation exercises cannot be politically influenced** and must be independent.

**V.V. Giri v. D. Suri Dora (1959):**

- Laid down the **principle of electoral fairness**, ensuring **no undue advantage in constituency boundaries.**
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## 4. COMMITTEES & COMMISSIONS

Several committees and commissions have examined the challenges and reforms needed for free speech, financial redistribution, and delimitation.

### 4.1 Committees on Free Speech

- **Sarkaria Commission (1983):** Recommended **independent media regulation** and **reduced state intervention** in press affairs.
- **Justice Srikrishna Committee (2018):** Recommended **data protection laws** to **balance privacy and free speech**.

### 4.2 Committees on Financial Redistribution

- **Finance Commissions (Every 5 Years):** Determine **state-wise tax allocations** and **fiscal policies**.
- **N.K. Singh-led 15th Finance Commission (2020):** Recommended a **new formula** for **financial devolution** among states.

### 4.3 Commissions on Delimitation

- **Delimitation Commissions (1952, 1963, 1973, 2002):** Established guidelines for **electoral constituency adjustments**.
  - **Election Commission of India (ECI) Reports:** Assess **delimitation impacts** on **fair representation**.
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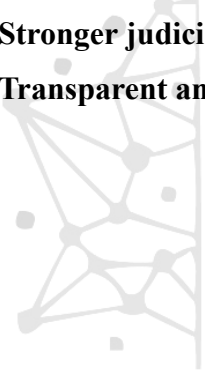
## 5. CHALLENGES & REFORMS NEEDED

Despite a strong legal and judicial framework, several challenges persist:

- **Free speech concerns:** Increased internet shutdowns, media censorship, and misuse of defamation laws.
- **Financial redistribution disputes:** States demand greater autonomy and control over taxation post-GST.
- **Delimitation controversies:** Calls for reconsideration of the 2026 freeze to address population disparities.

### Proposed Reforms

1. **Legislative safeguards for digital speech protections.**
2. **Stronger judicial review of financial allocations to states.**
3. **Transparent and independent delimitation processes.**



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# KEY ISSUES AND CHALLENGES

Despite a well-defined **constitutional, legal, and judicial framework**, India faces several challenges related to **freedom of speech, financial redistribution, and delimitation**. These challenges arise due to **political misuse of laws, economic disparities, digital censorship, and outdated electoral representation mechanisms**. This section explores the **key issues affecting these areas**, backed by case studies, reports, and judicial precedents.

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## 1. INCREASING CENSORSHIP & SUPPRESSION OF DISSENT

### 1.1 Misuse of Laws Against Free Speech

India has witnessed an **increasing use of sedition, defamation, and anti-terror laws** to curb dissent, often targeting journalists, activists, and opposition leaders.

#### Key Legal Provisions Used for Censorship:

- **Sedition Law (Section 124A, IPC):** Used to silence critics of the government.
- **Unlawful Activities (Prevention) Act (UAPA), 1967:** Used against activists and political dissenters.
- **Defamation Laws (Sections 499 & 500, IPC):** Frequently misused by politicians to target media houses.

#### Case Studies & Judicial Interventions:

- **Kedar Nath Singh v. State of Bihar (1962):** The Supreme Court upheld sedition laws but limited their use to cases of **violent incitement**.
- **Sedition Cases Against Journalists (2021-22):** Several journalists faced **sedition charges** for reporting on government policies (e.g., Rana Ayyub, Siddique Kappan).
- **Arnab Goswami v. State of Maharashtra (2020):** The Supreme Court ruled that **press freedom is essential for democracy** and granted bail to the journalist.

- **Farmers' Protests (2020-21):** Several activists were **arrested under UAPA** for supporting the movement.

A major challenge in this case is that legal reforms will be needed to prevent misuse of speech-related laws and ensure accountability for wrongful arrests.

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## 2. INTERNET SHUTDOWNS & DIGITAL CENSORSHIP

India has **one of the highest numbers of internet shutdowns globally**, affecting free speech, journalism, and financial transactions.

### Major Internet Shutdowns in India:

- **Jammu & Kashmir (2019-2020):** The longest shutdown in a democracy (550+ days) after Article 370 abrogation.
- **Delhi CAA Protests (2019):** Internet was blocked to curb anti-government protests.
- **Manipur Ethnic Clashes (2023):** Internet was suspended for months to control violence.

### Legal Challenge & Supreme Court Rulings:

- **Anuradha Bhasin v. Union of India (2020):** The Supreme Court ruled that **indiscriminate internet shutdowns violate Article 19(1)(a)** and must be **proportionate and necessary**.
- **IT Rules, 2021:** Critics argue these rules allow **government overreach in social media regulation**, leading to potential **curbs on online speech**.

As we can clearly see legal guidelines on digital speech, internet shutdowns, and data privacy laws are needed.

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### 3. FINANCIAL INFLUENCE ON MEDIA & PUBLIC DISCOURSE

#### 3.1 Corporate & Government Control Over Media

The **concentration of media ownership** among a few corporate entities and government control over advertising revenue affects **media independence**.

##### Key Issues in Media Freedom:

- **Government as the largest advertiser:** Over **₹1,250 crores spent annually** on media ads, influencing editorial policies.
- **Corporate-Owned News Networks:** Major conglomerates like **Reliance, Adani, and Times Group** dominate the media space, limiting independent journalism.

##### Relevant Reports:

- **Reporters Without Borders (2023):** India ranks **161st in Press Freedom Index**, citing **political interference in journalism**.
- **Hoot Media Ownership Report (2019):** Found that **over 70% of news channels are owned by business tycoons with political affiliations**.

There will be a need for independent media regulation to prevent financial influence on public discourse.

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## 4. DISPARITIES IN FINANCIAL REDISTRIBUTION AMONG STATES

### 4.1 Federal vs. State Control Over Funds

Disputes over **tax distribution and grants-in-aid** have led to financial inequalities among states.

#### Key Challenges in Financial Redistribution:

- **GST Compensation Disputes (2017-2023):** Many states claim they **lost financial autonomy under GST**, affecting welfare spending.
- **15th Finance Commission (2020):** Southern states argue that the **current formula for fund distribution** penalizes states with lower population growth.
- **Cess and Surcharge Issue:** The Union government collects **high cess and surcharge taxes**, but these funds are **not devolved to states**.

#### Relevant Judicial & Committee Reports:

- **State of West Bengal v. Union of India (1963):** Reinforced **state rights in financial governance**.
- **N.K. Singh Committee (2019):** Recommended **higher flexibility for state spending** under the Finance Commission.

**A major challenge that can be faced in this is that the states will demand greater fiscal autonomy and a revised formula for tax devolution.**

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## 5. DELIMITATION AND POLITICAL REPRESENTATION ISSUES

### 5.1 Outdated Delimitation & Electoral Imbalances

India's delimitation process has been **frozen since 1976** and will only be revised in **2026**, raising concerns about **population-based representation**.

#### Key Issues in Delimitation:

- **Unequal Representation:** Southern states have seen **lower population growth but higher GDP contributions**, while Northern states have higher population growth but **less economic output**.
- **North-South Divide in Parliamentary Seats:** If delimitation is conducted post-2026, Northern states may **gain more seats**, potentially affecting **federal balance and regional representation**.

#### Historical Background & Legal Challenges:

- **Delimitation Commission Acts (1952, 1963, 1973, 2002):** Established periodic electoral boundary revision, but the **freeze since 1976** has distorted fair representation.
- **V.V. Giri v. D. Suri Dora (1959):** The Supreme Court emphasized the **importance of proportional representation in electoral democracy**.
- **Gujarat Assembly Election Case (2002):** The Court ruled that **delimitation must not be politically influenced**.

A challenge that can be faced is that there will be a need for a balanced approach to delimitation that considers both population growth and economic contributions of states.

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## 6. LACK OF TRANSPARENCY IN POLITICAL FUNDING

### 6.1 Electoral Bonds & Undisclosed Donations

The **Electoral Bonds Scheme (2017)** has led to concerns about **anonymous political donations**, raising questions about financial transparency in elections.

#### Key Issues:

- **Lack of Public Disclosure:** Political parties do not have to disclose donor identities, leading to **corporate influence in policymaking**.
- **Supreme Court Petitions (2019-2023):** Multiple petitions have challenged **electoral bonds**, arguing they **violate voters' right to know**.
- **ADR Report (2023):** Found that **over 75% of corporate donations go to the ruling party**, indicating a **potential bias in governance**.

Challenges that can be faced are that there will be a dire need for reforms ensuring transparency and accountability in political funding.



# WAY FORWARD: PROPOSED REFORMS

Addressing the challenges of **freedom of speech, financial redistribution, and delimitation** requires a **multi-pronged approach** involving **legislative, judicial, and policy reforms**. This section outlines **key recommendations** to safeguard free expression, ensure equitable financial distribution, and create a fair electoral system.

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## 1. REFORMS TO PROTECT FREEDOM OF SPEECH

### 1.1 Repealing or Amending Laws That Suppress Free Speech

Several laws, including the **Sedition Law (Section 124A, IPC)**, **UAPA**, and **defamation laws**, have been misused to suppress dissent. **Judicial and legislative reforms** are necessary to prevent their abuse.

#### Proposed Reforms:

- **Repeal Section 124A (Sedition Law):** Align with the **Law Commission of India's 267th Report (2017)**, which recommended **clearer definitions of sedition**.
- **Amend UAPA, 1967:** Introduce **stronger judicial oversight** for cases involving free speech.
- **Decriminalize Defamation:** Shift from **criminal defamation (IPC Sections 499 & 500)** to a **civil liability model**, as followed in the **UK Defamation Act, 2013**.

#### Judicial & Parliamentary Interventions:

- **Kedar Nath Singh v. State of Bihar (1962):** The Supreme Court upheld sedition laws but **limited their application to violent incitement**.
- **Shreya Singhal v. Union of India (2015):** Struck down **Section 66A of the IT Act**, protecting digital free speech.

(Our suggestion on the implementation strategy: Amend the IPC & IT Act through a Parliamentary Committee on Free Speech Reform.)

## 1.2 Regulating Internet Shutdowns & Digital Censorship

India has witnessed **frequent and prolonged internet shutdowns**, affecting free speech, journalism, and economic activity.

### Proposed Reforms:

- **Introduce Judicial Oversight for Shutdowns:** Amend the **Information Technology (IT) Act, 2000**, to require **Supreme Court or High Court approval** for prolonged shutdowns.
- **Revise IT Rules, 2021:** Reduce **government overreach on social media regulation** to prevent arbitrary takedowns of content.
- **Strengthen Data Protection Laws:** Implement recommendations from the **Justice Srikrishna Committee Report (2018)** to balance **free speech and privacy rights**.

### Judicial Precedents:

- **Anuradha Bhasin v. Union of India (2020):** Ruled that **indiscriminate internet shutdowns** violate Article 19(1)(a).

(Our suggestion on the implementation strategy: Introduce an Internet Shutdown Review Committee under the Supreme Court for **real-time monitoring of shutdown orders**.)

## 1.3 Strengthening Media Independence & Transparency in Political Advertising

Corporate ownership and government influence over **media funding** threaten press freedom and **impartial journalism**.

### Proposed Reforms:

- **Establish a National Press Ombudsman:** An **independent regulatory body** (like the UK's **Press Complaints Commission**) to monitor **political bias in media**.
- **Regulate Government Ad Spending:**
  - Introduce **spending caps** on government-funded advertisements.
  - Ensure **equal ad distribution across independent and mainstream media**.
- **Enhance Transparency in Media Ownership:** Mandate **disclosure of cross-media ownership** to prevent monopolization.

### Relevant Reports:

- **Hoot Media Ownership Report (2019):** Found **concentrated media ownership among political-business groups**.

(Our suggestion on the Implementation Strategy: Pass a **Media Transparency & Independence Bill** to regulate **government control over media funding**.)

## 2. REFORMS FOR FAIR FINANCIAL REDISTRIBUTION

### 2.1 Revising the Finance Commission Formula for Equitable Tax Distribution

Current financial redistribution mechanisms favour **higher-population states**, creating **regional disparities**.

### Proposed Reforms:

- **Incentivize Fiscal Performance:** Revise the **Finance Commission formula** to reward states for **economic efficiency, rather than just population size**.
- **Expand States' Share in GST Revenue:** Increase state share from **42% to 50%**, as proposed by **Tamil Nadu's Fiscal Autonomy Committee (2021)**.
- **Reduce Discretionary Grants:** Make **Finance Commission recommendations legally binding** to ensure **fair allocation of resources**.

## Judicial Precedents & Reports:

- **S.R. Bommai v. Union of India (1994):** Reinforced **federalism** and prevented the **Union government from financially undermining states**.
- **N.K. Singh-led 15th Finance Commission (2020):** Recommended **more state autonomy in fiscal matters**.

(Our suggestion on the implementation strategy: Amend Article 280 to mandate **greater fiscal devolution to states**.)

## 2.2 Ensuring Fiscal Autonomy for States

Several states argue that **GST implementation (2017)** has **reduced their financial autonomy**.

### Proposed Reforms:

- **Reintroduce State-Level GST Powers:** Allow **states to levy additional GST components** for local revenue generation.
- **Reform Cess & Surcharge Distribution:**
  - Make **cess revenue shareable with states**.
  - Ensure **state-led oversight of fiscal policies** through a **State Fiscal Council**.

### Relevant Reports:

- **RBI Report on Fiscal Federalism (2022):** Highlighted that **state borrowing capacities have declined under GST**.

(Our suggestions on the implementation Strategy: Introduce an amendment in the **GST Council Act** to allow **greater state taxation flexibility**.)

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### 3. REFORMS FOR DELIMITATION & POLITICAL REPRESENTATION

#### 3.1 Conducting a Balanced & Fair Delimitation Post-2026

The **delimitation freeze (1976-2026)** has led to an **imbalance in representation** between Northern and Southern states.

##### Proposed Reforms:

- **Revise the Delimitation Formula:** Balance **population growth and economic contribution** in parliamentary seat allocation.
- **Strengthen the Delimitation Commission:** Ensure **complete autonomy** by bringing it under the **Election Commission of India (ECI)**.
- **Introduce Weighted Representation:** Follow models like **Germany's Bundesrat**, where states get **extra-parliamentary votes** based on economic contributions.

##### Judicial & Policy Interventions:

- **V.V. Giri v. D. Suri Dora (1959):** Emphasized the **importance of proportional representation**.
- **Delimitation Commission Reports (1952, 1963, 1973, 2002):** Recommended a **dynamic seat allocation model** based on economic and demographic changes.

(Our suggestion on the implementation strategy: Amend Articles 82 & 170 to ensure a **fair delimitation process** that considers both **population growth and economic performance**.)

### 3.2 Enhancing Transparency in Electoral Funding

The **Electoral Bonds Scheme (2017)** has raised concerns over **anonymous political donations**.

#### **Proposed Reforms:**

- **Abolish Anonymous Political Donations:** Require **mandatory disclosure of donor identities** above ₹10 lakh.
- **Cap Corporate Donations:** Limit **corporate political donations to 5% of net profits** (similar to the UK model).
- **Enhance ECI Oversight on Funding:** Grant the **Election Commission direct regulatory powers** over political donations.

#### **Judicial Precedents & Reports:**

- **Association for Democratic Reforms (ADR) Report (2023):** Found **75% of political donations go to the ruling party**.
- **Supreme Court's Ongoing Case on Electoral Bonds:** Likely to rule on transparency reforms soon.

(Our suggestion on the implementation strategy: Amend the **Representation of the People Act (1951)** to mandate **real-time donor disclosure**.)



# COLLECTIVE CONCLUSION

The **deliberation on freedom of speech in India, with special emphasis on financial redistribution and delimitation**, highlights the **complex relationship between democratic rights, economic policies, and political representation**. Through an extensive analysis of **constitutional provisions, legal interpretations, judicial precedents, policy reports, and international comparisons**, this research underscores the urgent need for **institutional safeguards and systemic reforms** to ensure a **truly democratic framework**.

## 1. Freedom of Speech: Balancing Rights and Restrictions

While **Article 19(1)(a) of the Indian Constitution** guarantees **free speech**, **Article 19(2) and various penal laws** impose **reasonable restrictions**—many of which have been **misused** to curb dissent. **Sedition laws, internet shutdowns, defamation cases, and arbitrary arrests under UAPA** have raised concerns about **state overreach and suppression of dissenting voices**. Landmark judgments such as **Shreya Singhal v. Union of India (2015)** and **Anuradha Bhasin v. Union of India (2020)** have attempted to **limit state control**, yet **loopholes remain**.

**Ways to move forward:**

1. **Repeal or amend sedition laws and decriminalize defamation**
2. **Judicial oversight for internet shutdowns and digital censorship.**
3. **Independent media regulation to prevent political and corporate influence**

## 2. Financial Redistribution: Addressing Fiscal Inequities

Financial policies **directly impact democratic discourse, regional development, and governance efficiency**. The **current Finance Commission formula** disproportionately favours **higher-population states**, leading to **regional imbalances**. Furthermore, the **centralization of GST and misuse of discretionary grants** have weakened **state autonomy**. Reports from the **RBI and Finance Commission** suggest that **states require greater fiscal flexibility** to meet their developmental needs.

**Ways to move forward:**

1. **Revise the tax devolution formula to balance population size and economic contributions.**
2. **Increase state autonomy in GST collection and revenue allocation.**
3. **Ensure fiscal transparency in cess and surcharge distributions.**

### **3. Delimitation: The Challenge of Representation**

The **delimitation freeze since 1976** has created **disproportional representation** in Parliament. If delimitation is **revised post-2026**, states with **higher population growth (UP, Bihar, MP)** could gain more seats, potentially **reducing representation for Southern and Northeastern states**. The debate centres on **whether delimitation should be based solely on population growth or if economic output should be factored into seat allocation**.

**Ways to move forward:**

1. **Ensure a balanced delimitation process considering both population and economic strength**
  2. **Strengthen the Election Commission's autonomy in boundary revision.**
  3. **Introduce a weighted representation model to prevent regional disenfranchisement**
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## Final Thoughts

The research underscores that **free speech, financial redistribution, and delimitation are interconnected elements of India's democratic structure**. Addressing these issues requires a **multi-pronged approach** involving:

1. **Legislative reforms to protect free expression**
2. **Judicial oversight to prevent executive overreach**
3. **Transparent and equitable fiscal policies**
4. **Fair and representative electoral boundary adjustments**

We hope this research serves as a **foundation for insightful discussions** and that the deliberations lead to **meaningful policy recommendations that uphold constitutional values**.

We wish to have a successful conference with you all, happy debating,

see you there!



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